

Senate Amendment to
House File 644

H-1269

1 Amend House File 644, as passed by the House, as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 DELEGATION OF CUSTODIAL RIGHTS AND DUTIES — CONTINGENT ON
6 NONENACTMENT OF LEGISLATION

7 Section 1. Section 232.2, subsection 12, paragraph c, Code
8 2025, is amended to read as follows:

9 c. (1) All rights and duties of a custodian shall be
10 subject to any residual rights and duties remaining in a parent
11 or guardian.

12 (2) Notwithstanding subparagraph (1), the department may
13 consent to emergency medical care and routine medical care for
14 a child that will allow the child to experience childhood and
15 participate in activities in a manner similar to the child's
16 peers. "Routine medical care" includes but is not limited to
17 all of the following:

18 (a) Preventative care, also known as wellness care, not
19 including the administration of a vaccination.

20 (b) Nonemergency medical care including but not limited
21 to a physical examination, a diagnostic laboratory test, or a
22 medical visit for a minor illness.

23 (c) Use of necessary medication, including but not limited
24 to antibiotics.

25 (3) Notwithstanding subparagraph (1), the department
26 may consent to a child's participation in an individualized
27 education program.

28 Sec. 2. Section 232.2, subsection 12, Code 2025, is amended
29 by adding the following new paragraph:

30 NEW PARAGRAPH. d. If a court order entered under this
31 chapter transfers legal custody of a child to the department,
32 the department shall have the authority to delegate the
33 department's rights and duties as custodian of the child to a
34 licensee under chapter 237.

35 Sec. 3. Section 237.10, subsection 1, Code 2025, is amended

1 by adding the following new paragraph:

2 NEW PARAGRAPH. *d.* (1) The department shall notify an
3 individual licensee, and the parents or guardians of a child,
4 if the department delegates the department's right to consent
5 to emergency medical care and routine medical care on behalf of
6 the child under section 232.2, paragraph "c", to the individual
7 licensee.

8 (2) The department shall notify the department of
9 education, an individual licensee, and the parents or guardians
10 of a child if the department delegates the department's right
11 to consent to participation in an individualized education
12 program on behalf of the child under section 232.2, paragraph
13 "c", to the individual licensee.

14 Sec. 4. CONTINGENT EFFECTIVE DATE. This division of this
15 Act takes effect unless division II of this Act takes effect.

16 DIVISION II

17 DELEGATION OF CUSTODIAL RIGHTS AND DUTIES — CONTINGENT ON
18 ENACTMENT OF LEGISLATION

19 Sec. 5. Section 232.2, subsection 12, paragraph c, Code
20 2025, is amended to read as follows:

21 *c.* (1) All rights and duties of a custodian shall be
22 subject to any residual rights and duties remaining in a parent
23 or guardian.

24 (2) Notwithstanding subparagraph (1), the department may
25 consent to emergency medical care and routine medical care for
26 a child that will allow the child to experience childhood and
27 participate in activities in a manner similar to the child's
28 peers. "Routine medical care" includes but is not limited to
29 all of the following:

30 (a) Preventative care, also known as wellness care, not
31 including the administration of a vaccination.

32 (b) Nonemergency medical care including but not limited
33 to a physical examination, a diagnostic laboratory test, or a
34 medical visit for a minor illness.

35 (c) Use of necessary medication, including but not limited

1 to antibiotics.

2 (3) Notwithstanding subparagraph (1), the department
3 may consent to a child's participation in an individualized
4 education program.

5 Sec. 6. Section 232.2, subsection 12, Code 2025, is amended
6 by adding the following new paragraph:

7 NEW PARAGRAPH. *d.* If a court order entered under this
8 chapter transfers legal custody of a child to the department,
9 the department shall have the authority to delegate the
10 department's rights and duties as custodian of the child to an
11 individual licensee, or an approved kinship caregiver under
12 chapter 237.

13 Sec. 7. Section 237.10, subsection 1, Code 2025, is amended
14 by adding the following new paragraph:

15 NEW PARAGRAPH. *d.* (1) The department shall notify an
16 individual licensee or an approved kinship caregiver, and the
17 parents or guardians of a child, if the department delegates
18 the department's right to consent to emergency medical care
19 and routine medical care on behalf of the child under section
20 232.2, paragraph "c", to the individual licensee or approved
21 kinship caregiver.

22 (2) The department shall notify the department of
23 education, an individual licensee or an approved kinship
24 caregiver, and the parents or guardians of a child, if the
25 department delegates the department's right to consent to
26 participation in an individualized education program on
27 behalf of the child under section 232.2, paragraph "c", to the
28 individual licensee or approved kinship caregiver.

29 Sec. 8. CONTINGENT EFFECTIVE DATE. This division of this
30 Act takes effect July 1, 2025, only if 2025 Iowa Acts, Senate
31 File 582, or House File 757, or successor legislation to Senate
32 File 582 or House File 757, is enacted on or before July 1,
33 2025.>